

Non-compliance with Art. 84 EPC is not a ground for opposition, but is a matter to be considered in the context of Art. 101(3) EPC (see also G 3/14, OJ 2015 A102 and in this chapter IV.C.5.2.).

In T 600/08 the board observed that the EPC did not provide for reviewing, as part of opposition proceedings, the legality of a decision by the Receiving Section to correct an applicant's name in a divisional application. The grounds for opposition were set out exhaustively in Art. 100 EPC. Objections to the text of a patent as granted could not be raised on other grounds. It made no difference that the text of the patent in suit had been amended.

2.2.8 Indication of facts, evidence and arguments – substantiation of grounds for opposition

a) No "partial inadmissibility"

The third requirement of R. 76(2)(c) EPC for the admissibility of the opposition is the substantiation of the specified ground, i.e. an indication of the facts, evidence and arguments presented in support of it. The fulfilment of this latter requirement in respect of **one of the grounds for opposition** is enough to render admissible the opposition **as a whole**. Nowhere in the EPC is there any basis for the concept of partial admissibility of oppositions. The concept of "inadmissibility" is only applicable to the notice of opposition as a whole (T 653/99; see also T 212/97, T 65/00, T 414/17 and T 2659/17).

According to T 114/95, if an opponent requests revocation of the patent in its entirety, it is sufficient to substantiate the ground(s) of opposition in respect of **at least one claim** of the patent for the requirements of R. 76(2)(c) EPC (R. 55(c) EPC 1973) to be met (T 926/93, OJ 1997, 447; T 1180/97, T 1900/07; see also in this chapter IV.C.3.2.).

b) Relevant date for compliance

The question whether the requirements in R. 76(2)(c) EPC are met must be determined on expiry of the nine-month opposition period (R. 77(1) EPC). A notice objectively complying with the requirements **on the relevant date** is not rendered inadmissible where the opponent later cites prior art not mentioned in it to support his line of argument (T 1019/92; see also T 104/06).

c) Full and concise reasoning

In T 222/85 (OJ 1988, 128) the board held that the third requirement was only satisfied if the contents of the notice of opposition were sufficient for the opponent's case to be **properly understood on an objective basis**, from the point of view of a reasonably skilled person in the art to which the opposed patent relates. The board reasoned that the purpose of the third requirement of R. 55(c) EPC 1973 (R. 76(2)(c) EPC), in combination with the first two requirements, was to ensure that the notice of opposition set out the opponent's case sufficiently so that both the patentee and the opposition division knew what that case was. Whereas the requirements of R. 55(a) and (b) EPC 1973 (R. 76(2)(a)

and (b) EPC) and the requirements (1) and (2) of R. 55(c) EPC 1973 could be considered as **formal** in nature, requirement (3) of R. 55(c) EPC 1973, in combination with Art. 99(1) EPC, was **substantive** in nature, and called for reasoning which went to the merits of the opponent's case. A well-drafted opposition ought to contain reasoning that was full but concise. And in general, the less reasoning that a notice of opposition contained, the greater the risk that it would be rejected as inadmissible (similarly T 925/91, OJ 1995, 469; see also T 2/89, OJ 1991, 51; T 448/89, OJ 1992, 361; T 545/91, T 204/91). According to the board, the question whether a particular notice of opposition meets the minimum substantive requirements of Art. 99(1) EPC 1973 and R. 55(c) EPC 1973 could only be decided in the context of the particular case (since various relevant factors, such as the complexity of the issues raised, vary from case to case) – see also e.g. T 534/98, T 1097/98, T 934/99, T 426/08.

In T 134/88 the board found that allegations which could not be subsumed under one of the opposition grounds had to be left out of consideration (see also e.g. T 521/00).

In T 623/18 the board qualified these principles established in T 222/85 and T 134/88 by emphasising inter alia that there was no basis for making the admissibility of the opposition dependent on substantive questions, such as whether an objection relates merely to a lack of clarity (see the abstract in this chapter IV.C.2.2.8 g)).

In T 204/91 the board stated in particular that the term "indication" in R. 55(c) EPC 1973 (R. 76(2)(c) EPC) had to be construed as requiring **more than a mere hint** at a number of possible attacks upon the patent and at the likely support for each such possible attack, which indication or hint might then be augmented by the subsequent late filing, possibly even at the appeal stage, of further evidence, arguments or other matter – even of fresh grounds of objection. Rather, the scope and depth of "indication" needed to be such as to enable the patentee and the opposition division to see clearly just what attack was being mounted against the patent, and what evidential support was being adduced for that attack. In other words, the patentee and the opposition division had to be put in a position of understanding clearly the nature of the objection submitted as well as the evidence and arguments in its support. This required the elaboration of the relevant circumstances of the case to such an extent that the patentee and the opposition division were able to form a definitive opinion on at least one ground for opposition raised, without the need to make further investigations (see T 453/87 and T 279/88; see further e.g. T 1069/96 and T 426/08).

The fact that a patentee must be able to understand, without undue burden, the case made against his patent in the notice of opposition does not, however, exclude the possibility that he may have to undertake a **certain amount of interpretation** (T 199/92; see also T 1553/07, T 265/16; see however T 1082/00, which highlights the limits of this principle and refers to T 204/91).

d) Substantiation to be distinguished from strength of the opponent's case

In T 934/99 the board stated that R. 55(c) EPC 1973 (R. 76(2)(c) EPC) did not imply the requirement of a logical line of reasoning in the sense that the arguments brought forward

in the notice of opposition had to be cogent or convincing. Rather, the criterion was whether the arguments presented were relevant and, where necessary as the result of a reasonable interpretative effort, specific enough to allow a person skilled in the art to form a reasoned opinion of whether the line of reasoning on which the opponent apparently relies was (logically) correct ("convincing") or not (i.e. wrong).

The sufficiency of the notice of opposition has **to be distinguished** from the **strength** of the opponent's case. On the one hand, an unconvincing ground for opposition might have been clearly presented and argued. Conversely, a deficient submission may be rejected as inadmissible even though, if properly drafted, it would have succeeded (T 222/85, OJ 1988, 128; T 621/91, T 3/95, T 1069/96, T 1856/11).

In the same vein, in T 65/00 the board held that it was of no importance for admissibility whether the relevance of the arguments brought forward, or their correctness, was sufficient to revoke the patent. In the case at issue it was therefore irrelevant whether the arguments brought forward by the opponent referred to Art. 84 or Art. 83 EPC 1973. For admissibility it was sufficient that the arguments were such that an **arguable case** was **established**. See also T 623/18.

Similarly, the board in T 1194/07 referred to the established case law, according to which the indication of facts, evidence and arguments need not be conclusive or correct. That is an issue of merit. However, the board also emphasised that the merits of a case can only be assessed in a meaningful manner if the case has been stated fully, by an adequate indication of the relevant facts, evidence and arguments. Key elements linking the cited prior art to the claim or relating to their validity as evidence, as well as crucial arguments informing the reader why the skilled person might have considered combining the features of such prior art with those of the accompanying evidence, should not be missing in the notice's chain of logic leading from the prior art to the invention.

e) Indication of evidence

Assessing the evidence is part of the process of ascertaining whether the opposition is well founded in substance (T 234/86, OJ 1989, 79). Thus, in T 353/06 the board identified the appellants' arguments for the inadmissibility of the opposition as concerning the corroborative value of the facts and evidence, rather than a failure to indicate such facts and evidence in support of the grounds of opposition.

In T 426/08 too, the board, citing T 234/86 and T 538/89, stressed that R. 55(c) EPC 1973 did not require that the indicated evidence be put on file within the period for opposition. However, the board considered that the **content of evidence** merely referred to within the opposition period but not produced until after it could not, for the purpose of examining admissibility, be taken into account either as an indication of facts or evidence or as proof of facts. On the indication of evidence in the context of public prior use, see in this chapter IV.C.2.2.8.i) below.

f) No burden of proof with regard to negative facts

In T 2037/18, the board observed that there was **no burden of proof** ("Darlegungs- und Beweislast") **with regard to negative facts** to be discharged in substantiating the notice of opposition. Under the rules on the burden of proof applicable in EPC proceedings, each of the parties had to present and prove only the facts in their favour – in line with the principle of "negativa non sunt probanda" (see the summary of this decision in this chapter IV.C.2.2.8 i)).

g) Examples – sufficient substantiation acknowledged

In T 1279/05, the board held that it was not absolutely necessary to cover every single feature of the opposed patent claim so long as the notice of opposition dealt with the **essence** of the invention defined in that claim (see T 134/88 and T 1097/98). See also T 114/07.

In T 534/98 the board held that evidence of the **common general knowledge** was not required to substantiate an opposition. In accordance with the prevailing view in the case law, proof that something belonged to the common general knowledge was only necessary if this was called into question by another party or by the EPO.

In T 1074/05, the arguments in the notice of opposition were concise and made no reference to relevant sources in citation D5. The board, however, considered that such references were unnecessary in the case in hand because D5 was a short document disclosing a technically straightforward communication system in a similarly abstract fashion to the contested patent.

Similarly, in T 1014/09 the board, considering the facts of the case in issue and the accompanying legal analysis set out in the notice of opposition, held that the **general reference** to the original disclosure in the notice of opposition could be regarded as a due indication within the meaning of R. 55(c) EPC 1973 (R. 76(2)(c) EPC).

In T 185/88 (OJ 1990, 451) the board ruled that grounds for opposition are deemed to be in due form if the only document cited in support of the sole assertion of lack of inventive step (here: German patent specification), while itself published **after** the date of filing or priority, nevertheless contained a reference to a document published **before** the date of filing or priority (here: German unexamined application or "Offenlegungsschrift"). See also T 205/08.

In T 864/04 the board had to examine whether the express mention of document D1a in the notice of opposition in relation to D1 by the statement: "(divided out inter alia of US-PS No. 5,290,583)" was sufficiently precise to enable the patentee to find out the date of the publication of this document. In the Board's view, this was indeed the case because no undue burden was involved to discover D1a's publication date.

In T 623/18 the board guarded against a too strict approach. The board emphasised the purpose of the statement under R. 76(1) and (2)(c) EPC, as explained in G 9/91 and

G.10/91 (OJ 1993, 408 and 420), namely to define the extent and scope of the opposition and the legal and factual framework, within which the substantive examination of the opposition is in principle conducted, as well as to give the patentee a fair chance to consider his position at an early stage of proceedings. The board saw no basis for making admissibility of the opposition dependent on the assessment of substantive questions, in particular on whether an objection merely related to a lack of clarity or could support the ground for opposition under Art. 100(b) EPC. It was also a matter of substantive examination to characterise the person skilled in the art, for whom, according to Art. 100(b) EPC, the description should be sufficiently clear and complete, and for whom obviousness over the prior art was to be assessed according to Art. 100(a) EPC in combination with Art. 56 EPC.

h) Examples – sufficient substantiation denied

In **T.182/89** (OJ 1991, 391) the board took the view that, if a notice of opposition alleging insufficiency under Art. 100(b) EPC 1973 as the sole ground for opposition contained a mere statement that one example in the patent had been repeated once "exactly as described" without obtaining exactly the described results as claimed in the patent, the notice of opposition should be regarded as inadmissible even if the alleged facts were subsequently proved.

In **T.550/88** (OJ 1992, 117) the board of appeal considered whether **national prior rights** could as a matter of law constitute "facts or evidence" relevant to the ground of lack of novelty under Art. 54(1) and (3) EPC 1973. In the board's judgment, on the proper interpretation of Art. 54(3) EPC 1973, national prior rights were not comprised in the relevant state of the art. The board decided that the opposition was inadmissible because the only facts and evidence indicated in the notice of opposition were references to national prior rights.

According to **T.613/10**, the admissibility of the opposition has to be decided in the light of the circumstances of the case, especially if the requirements of R. 76(2)(c) EPC are not clearly and unambiguously met. Those circumstances include not just the technical complexity of the subject-matter in the opposed patent and the citations but also the number of claims and the number of citations – even if in principle an opposition can contain any number of attacks or citations. The patent proprietor should not have to try and work out the opponent's case for himself, from inadequate information given in the notice of opposition. In the case before the board, notice of opposition had been filed within the opposition period on the official form and two additional sheets. These listed 26 items of evidence, which however were filed, together with a detailed statement, only after the period expired. The notice had indicated the grounds of lack of novelty and lack of inventive step but did not say which citations related to which. None of the cited passages or drawings had been compared with the features of any of the 26 claims; nor had any technical connection been established between the citations and the claims. The board concluded that the requirements of R. 76(2)(c) EPC were not fulfilled.

In the similar case **T.296/17**, where the opponent filed nineteen pieces of evidence and a notice of opposition of one page which neither substantiated any of the grounds for